



CHAPTER i.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Glasgow and South Western Railway (Ayr Harbour Transfer). A.D. 1919.
[28th March 1919.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Glasgow and South Western Railway (Ayr Harbour Transfer) Order Confirmation Act 1919. Short title.

A.D. 1919.

SCHEDULE.

GLASGOW AND SOUTH WESTERN RAILWAY
(AYR HARBOUR TRANSFER).

Provisional Order to transfer to and vest in the Glasgow and South Western Railway Company the undertaking of the Ayr Harbour Trustees to empower the Company to create and issue debenture stock and for other purposes.

WHEREAS the harbour of Ayr (hereinafter called "the harbour") is at present vested in the Ayr Harbour Trustees (hereinafter called "the trustees") and is regulated by the provisions of the Ayr Harbour Acts and Order 1855 to 1901 and the Glasgow and South Western Railway Order 1904 (hereinafter called "the Order of 1904"):

And whereas by the Ayr Harbour Act 1893 (hereinafter called "the Act of 1893") the trustees were authorised to create and issue debenture stock to be classed and ranked as provided by that Act in lieu of the mortgages or assignments granted by the trustees and subsisting at the passing of the Act of 1893 and for the general purposes of their undertaking to an amount not exceeding the sum of five hundred thousand pounds (that is to say) two hundred and thirty-six thousand seven hundred pounds two shillings and sevenpence A debenture stock bearing interest at the rate of three and a quarter per centum per annum one hundred and sixty-three thousand two hundred and ninety-nine pounds seventeen shillings and fivepence B debenture stock bearing interest at the rate of four per centum per annum and one hundred thousand pounds C debenture stock bearing interest at a rate not exceeding five per centum per annum:

And whereas the trustees created and issued the whole of the A and B debenture stocks authorised by the Act of 1893 and up to the year 1901 had created and issued C debenture stock to the extent of twenty-three thousand pounds:

And whereas the revenues of the harbour were in the said year 1901 insufficient for the payment of the expenses of the

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management maintenance and repair of the harbour and the interest on the B and C debenture stocks created and issued under the provisions of the Act of 1893 irrespective of the sums which under the Act of 1893 were to be annually paid into the sinking fund provided for by that Act: A.D. 1919.

And whereas the arrears of interest outstanding on the said B and C debenture stocks in the year 1901 amounted to twelve thousand two hundred and fifty-six pounds five shillings and fourpence of which amount the sum of nine thousand eight hundred pounds five shillings and fivepence was in respect of the said B debenture stock and the sum of two thousand four hundred and fifty-five pounds nineteen shillings and elevenpence was in respect of the said C debenture stock:

And whereas it was anticipated that if the interest on the debenture stocks authorised by the Act of 1893 were guaranteed by the Glasgow and South Western Railway Company (hereinafter called "the Company") it would materially improve the financial position of the undertaking of the trustees and tend to the prosperity of the harbour:

And whereas the railways of the Company afford the only access by railway to the harbour and the Company convey nearly the whole of the traffic to and from the harbour and are largely interested in the management maintenance and improvement thereof and have already under the authority of Parliament contributed moneys including in particular a donation of ten thousand pounds under the Ayr Harbour Amendment Act 1873 towards these purposes:

And whereas the Company were willing and agreed to guarantee payment of the interest on the said debenture stocks (including the portion of C debenture stock then not created and issued) at an uniform rate not exceeding three and a quarter per centum per annum subject to the terms and conditions contained in an agreement between the trustees and the Company dated the twenty-sixth day of November and the eleventh day of December in the year nineteen hundred:

And whereas under the said agreement the Company undertook for thirty years from Whitsunday in the year nineteen hundred and one or for such further period as the trustees and the Company might from time to time agree to guarantee payment of the interest payable by the trustees at a rate not

A.D. 1919. exceeding three and a quarter per centum per annum on an amount not exceeding five hundred thousand pounds of such debenture stocks :

And whereas the holders of the said B and C debenture stocks in consideration of the said guarantee intimated in writing their willingness to accept during the continuance of the said agreement interest on their debenture stocks at the modified rate of three and a quarter per centum per annum and their consent to the cancellation of the arrears of interest on the said B and C debenture stocks outstanding as at the fifteenth day of May nineteen hundred and one to the extent of one-half of such arrears of interest :

And whereas this arrangement and the said agreement were set forth in and the said agreement was scheduled to and made binding by the Ayr Harbour Order 1901 confirmed by the Ayr Harbour Order Confirmation Act 1901 (hereinafter called "the Order of 1901") :

And whereas under the Order of 1901 the constitution of the trust was altered and provision was made for increasing the representation of the Company thereon :

And whereas under the Order of 1904 the trustees were authorised to issue C debenture stock and to sell any portion thereof at such prices as they might from time to time with the consent in writing of the Company by resolution direct :

And whereas the Company were by the Order of 1904 authorised from time to time to advance and to lend to the trustees such sums of money for such periods and at such rate of interest as they might deem proper on the security of the said C debenture stock for the time being unissued and the trustees were authorised to apply the moneys so advanced to them for any purpose of their undertaking to which capital is properly applicable :

And whereas the Company have in terms of the Order of 1904 advanced a sum of twenty thousand pounds on loan to the trustees on the security of fifty thousand pounds of the said C debenture stock :

And whereas the moneys advanced on loan by the Company to the trustees have been expended for the purposes of the undertaking of the trustees :

And whereas the revenue of the harbour has been insufficient to meet the said interest upon the said debenture stocks and the Company have in terms of the said guarantee paid large sums in respect of such interest: A.D. 1919.

And whereas further extensions and improvements are urgently required to put the harbour into proper condition so as to meet the requirements of the traffic at the harbour and such extensions and improvements will require the expenditure of considerable sums of money:

And whereas it would be of public and local advantage that such extensions and improvements should be carried out but the trustees are unable to issue the remainder of the said C debenture stock as the same is unmarketable and have no means of raising the further moneys required for such extensions and improvements:

And whereas the trustees being unable to provide the necessary funds for improving and carrying on the harbour approached the Company with the view of ascertaining whether the Company would take over the harbour as part of their undertaking:

And whereas the Company agreed to do so provided suitable arrangements were made with the holders of the A B and C debenture stocks of the trustees (hereinafter called "the debenture holders") amounting to 423,000*l*.

And whereas the debenture holders at a meeting held in Glasgow on 21st June 1917 appointed a committee to negotiate with the Company for the acquisition by them of the harbour undertaking and the committee in virtue of their powers subsequently co-opted an additional member as one of their number:

And whereas the committee (in this order called "the said committee") have on behalf of the debenture holders arranged for the acceptance by the debenture holders of four per cent. debenture stock of the Company in exchange for and extinction of the debenture stocks of the trustees in the event of the transfer of the harbour undertaking to the Company:

And whereas it is expedient that in implement of the said arrangements the harbour undertaking should be transferred to and vested in the Company on the terms in this Order mentioned:

And whereas it is expedient that the Company should be empowered to create and issue debenture stock for the purposes of this Order:

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A.D. 1919. And whereas the purposes aforesaid cannot be effected without an order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

Short and
collective
titles.

1. This Order may be cited for all purposes as the Glasgow and South Western Railway (Ayr Harbour Transfer) Order 1919 and shall come into operation at the date of the passing of the Act confirming the same which date is in this Order referred to as “the commencement of this Order” and the Ayr Harbour Acts and Order 1855 to 1901 and the Order of 1904 and this Order may be cited together for all purposes as the Ayr Harbour Acts 1855 to 1919.

Incorporation
of Acts.

2. The Harbours Docks and Piers Clauses Act 1847 except the provisions thereof with respect to the construction of the harbour dock or pier and except (unless otherwise required by the Board of Trade) the provisions thereof with respect to life-boats and with respect to keeping a tide and weather gauge and except sections 25 and 26 thereof and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts are except where expressly varied by this Order incorporated with and form part of this Order and for the purposes of the provisions so incorporated this Order shall be deemed to be a special Act.

Interpretation.

3.—(1) In this Order unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts incorporated herewith have the same respective meanings And—

The expression “the date of vesting” means the date of the commencement of this Order;

The expression “the harbour” means the Ayr Harbour;

The expression “the trustees” means the Ayr Harbour Trustees;

The expression “the harbour undertaking” means the undertaking of the trustees and includes all docks works lands railways sidings houses buildings telegraphic and telephonic apparatus plant rolling stock steam and other vessels ferries machinery cranes apparatus appliances conveniences heritable and moveable property estates

and effects books stores cash and other moneys accounts A.D. 1919.
 book and other debts revenue and other assets of every
 kind and description now belonging to the trustees or
 constructed erected and worked used or occupied by the
 trustees in connexion with the harbour undertaking
 rights powers jurisdictions authorities and privileges of
 the trustees with respect to the use management and
 maintenance of their said undertaking the purchase of
 lands construction and maintenance of works and levying
 collecting and recovering of tolls rates dues rents wharfage
 and other charges and all other rights powers jurisdictions
 authorities and privileges of whatever nature and kind
 belonging to or vested in or held used enjoyed or exercise-
 able by the trustees together with all title deeds and other
 writs vesting the property or any part thereof in the
 trustees and all plans and surveys and other documents
 relating to the harbour.

(2) The following expressions used in the Harbours Docks
 and Piers Clauses Act 1847 shall have the following respective
 meanings (that is to say):—

The expressions “packet boat” and “post office packet”
 mean respectively a vessel employed by or under the Post
 Office or the Admiralty for the conveyance under contract
 of postal packets as defined by the Post Office Act 1908
 and the expression “post office bag of letters” means a
 mail bag as defined by the same Act.

Provided that nothing in the Harbours Docks and Piers
 Clauses Act 1847 or in this Order shall extend to exempt from
 rates or duties any such vessel as aforesaid if she also conveys
 passengers or goods for hire.

4. As on and from the date of vesting the harbour under-
 taking shall be and the same is hereby transferred to and vested
 in the Company and thenceforth shall form part of the under-
 taking of the Company and the trustees shall by virtue of this
 Order be dissolved. Transfer of
harbour
undertaking.

5. From and after the date of vesting none of the provisions
 of the Ayr Harbour Acts and Order 1855 to 1901 which relate
 to the constitution election meetings offices officers books accounts
 balance sheets audit auditors sinking funds application of revenue As to certain
provisions of
Ayr Harbour
Acts and
Order.

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A.D. 1919. borrowing powers application of borrowed money and annual returns of the trustees shall apply to the Company or to the harbour undertaking.

Ayr Harbour
debenture
stocks to be
exchanged
for debenture
stock of
Company.

6. On the harbour undertaking being transferred to and vested in the Company the Company shall allocate to the holders of A B and C Ayr Harbour Stocks (hereinafter called "debenture stock of the trustees") four per cent. debenture stock of the Company at 76*l.* per 100*l.* equal to 315,789*l.* being equivalent to the cash value of 240,000*l.* but from the said sum of 315,789*l.* shall be deducted an amount of four per cent. debenture stock of the Company not exceeding 1,315*l.* being the equivalent at 76*l.* per 100*l.* of the sum of 1,000*l.* as a provision for expenses as hereinafter in this Order provided leaving an amount of at least 314,474*l.* four per cent. debenture stock of the Company to be allocated among the holders of debenture stock of the trustees and as from the date of vesting every holder of debenture stock of the trustees shall in lieu of and in exchange for each 100*l.* thereof held by him become and be the holder of four per cent. debenture stock of the Company bearing dividend as from the date of vesting in the proportions of debenture stock of the Company namely for each 100*l.* of A debenture stock 81*l.* 18*s.* 6*d.* or thereby of four per cent. debenture stock of the Company for each 100*l.* of B debenture stock 67*l.* 8*s.* or thereby of four per cent. debenture stock of the Company and for each 100*l.* of C debenture stock 45*l.* 11*s.* 7*d.* or thereby of four per cent. debenture stock of the Company and the allotment of the debenture stock of the Company shall be made as at the date of vesting.

Interest to
be paid to
debenture
holders.

7. The holders of debenture stock of the trustees shall up to the date of vesting continue to receive from the trustees interest at three and a quarter per cent. and shall after such date receive from the Company interest at four per cent. on the debenture stock of the Company allotted among them.

As to frac-
tional parts
of a pound
of stock.

8. Notwithstanding anything in this Order contained no holder of debenture stock of the trustees shall become entitled under this Order to any fractional part of a pound of debenture stock of the Company but in every case in which any such holder would but for this enactment have become entitled to a fractional part of a pound of such stock the Company shall pay to such holder such fractional part in cash.

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The receipt of any such holder for any sum in cash so paid to him as aforesaid shall be a sufficient discharge to the Company for the fractional part of stock in respect of which such sum is paid. A.D. 1919.

9. The expenses incurred or that may be incurred to M'Grigor Donald and Company writers Glasgow as agents for and on behalf of the holders of debenture stock of the trustees by the said committee or on behalf of the said holders in connexion with the agreement between the said M'Grigor Donald and Company and the Company dated the 21st and 25th June nineteen hundred and eighteen and the negotiations and others preceding and consequent on the same shall to the extent of 2,000*l.* be payable one-half by the Company and one-half by the holders of debenture stock of the trustees and the Company shall bear the whole of such expenses in excess of 2,000*l.* and shall also bear the expense of and in connexion with the transfer of the harbour undertaking to them. Expenses.

10. Any disputes or differences which may arise between the holders of debenture stock of the trustees as represented by the said committee on the one hand and the Company on the other hand as to the true intent and meaning of any of the sections of this Order of which the respective marginal notes are "Ayr Harbour debenture stocks to be exchanged for debenture stock of Company" "Interest to be paid to debenture holders" "As to fractional parts of a pound of stock" and "Expenses" shall failing agreement be determined by an arbiter to be appointed by the Board of Trade on the application of either the said committee or the Company. Disputes or differences.

11. The several persons whose names as holders of debenture stock of the trustees appear as such in the books of the trustees at the date of vesting or their respective executors administrators successors or assigns shall for the purpose of the issue to them of certificates of debenture stock of the Company be deemed to be the proprietors and holders of such debenture stock of the trustees. Debenture stock holders in books of trustees to be deemed proprietors.

12. On and after the date of vesting every holder of debenture stock of the trustees shall upon the delivery of the certificates of the same to the Company be entitled to receive instead thereof certificates of the debenture stock to which such As to exchange of certificates.

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A.D. 1919. holder is entitled under the provisions of this Order and all certificates with respect to the debenture stock of the trustees and the said debenture stock itself shall as from such date be, and the same are hereby cancelled.

Lost or
destroyed
certificates.

13. If any certificate for any debenture stock of the trustees be lost or destroyed then upon proof thereof and upon an indemnity being given against any claim in respect of such lost or destroyed certificate to the satisfaction of the directors of the Company the Company shall deliver to the person entitled to such certificate a certificate for the debenture stock of the Company to which he would be entitled under this Order as if such first-mentioned certificate had been delivered by him as hereinbefore provided.

Payment
into court in
certain cases.

14. If the Company are for twelve months after the date of vesting unable after reasonable inquiry to ascertain the person to whom any certificates of debenture stock of the Company ought to be issued as aforesaid or cannot obtain a sufficient discharge for the same the Company may transfer such stock to the King's and Lord Treasurer's Remembrancer on behalf of the Court of Exchequer in Scotland and every such transfer shall conclusively discharge the Company from all further liability with regard to any debenture stock so transferred and for the purpose of this Order such debenture stock shall be deemed to be issued to the person absolutely entitled thereto and any person afterwards showing to the satisfaction of the Court of Exchequer in Scotland that he is entitled to such debenture stock may obtain a transfer of such debenture stock accordingly.

Exchange
not to affect
deeds or
other instru-
ments.

15. All debenture stock of the Company issued and cash paid to the holders of any debenture stock of the trustees under the provisions of this Order shall be held in the same rights and on the same trusts and subject to the provisions of this Order upon and subject to the same powers provisions charges and obligations as those upon or to which the debenture stock of the trustees for which such debenture stock of the Company or such debenture stock and cash is or are substituted was immediately before such substitution held or subject and so as to give effect to and not revoke any deed or other instrument or any testamentary disposition of or affecting any such stock of the trustees and shall be dealt with applied and disposed of accordingly and every deed or other instrument or testamentary disposition of or affecting any such stock of the trustees shall

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take effect with reference to the whole or a proportionate part of the debenture stock of the Company so substituted therefor as the case may be. A.D. 1919.

16. Trustees executors and administrators and all other holders in any representative or fiduciary capacity of any debenture stock of the trustees may and shall accept the debenture stock of the Company issued or such stock issued and any cash paid to them under the provisions of this Order in substitution and in full satisfaction for such stock of the trustees and may and shall hold dispose of or otherwise deal with the same in all respects as they might have held disposed of or otherwise dealt with the debenture stock of the trustees for which such debenture stock of the Company is so substituted or (as the case may be) such debenture stock of the Company is so substituted and such cash is so paid and are hereby indemnified in respect of all acts bonâ fide done by them in pursuance of the provisions of this Order. As to holders of stocks being trustees.

17. As on and from the date of vesting there shall be created and issued by virtue of this Order and without further or other authority such amount of debenture stock of the Company as may be necessary to carry into effect the foregoing provisions of this Order and all debenture stock so created and issued shall rank pari passu with and shall confer the same privileges and shall bear the same rate of interest and shall be subject to the like restrictions as the other debenture stock of the Company existing at the date of vesting. Creation of debenture stock for exchange.

18. No action suit or other proceeding or cause of action suit or other proceeding to which at the date of vesting the trustees were parties shall abate determine or be prejudicially affected by reason of the transfer of the harbour undertaking to the Company but may be continued prosecuted and enforced by or against the Company as the case may be as fully and effectually as the same might have been continued prosecuted or enforced by or against the trustees. Actions &c. not to abate.

19. All contracts deeds instruments conveyances dispositions assignments grants leases purchases or sales made or entered into or undertakings given by the trustees before the date of vesting shall be effectual to all intents in favour of or against the Company after such date as if the Company had been a party thereto or entitled to the benefit thereof in the place of the trustees. Saving for contracts &c.

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A.D. 1919. 20. All persons who immediately before the date of vesting
Moneys due owed any moneys to the trustees or to any person on their
to trustees behalf shall pay the same with all interest (if any) due or
to be paid to accruing upon the same to the Company and such moneys may
Company. be recovered and all remedies in respect thereof enforced by
the Company accordingly and all debts and moneys which
immediately before the date of vesting were due or recoverable
from the trustees or for the payment of which the trustees
were or but for this Order would be liable shall be paid with
all interest (if any) due or accruing for the same by or be
recoverable from the Company.

Company to 21. As from the date of vesting all debts and liabilities
assume all contracts and engagements of the trustees shall subject to the
engagements provisions of this Order be taken over and assumed by the
of trustees. Company and the trustees shall be and they are hereby wholly
freed and relieved therefrom.

Documents 22. All documents books and writings which would have
to be evi- been receivable in evidence in respect of any matter relating
dence. to the harbour undertaking for or against the trustees shall
after the date of vesting be admitted as evidence in respect of
the same or the like matter for or against the Company.

Saving for 23. All the byelaws rules and regulations of the trustees
byelaws relating to the management use or control of the harbour
rules and undertaking in force at the commencement of this Order shall
regulations. continue to be in force and applicable to and in respect of the
harbour undertaking and as from the date of vesting shall and
may be enforced by and be available to the Company in their
own name as well for the recovery of penalties as for all other
purposes until the same are altered or repealed or other bye-
laws rules and regulations duly made in their stead by the
Company.

Byelaws. 24.—(1) The byelaws which may from time to time be made
by the Company in exercise of the power in that behalf con-
ferred on them by section 83 of the Harbours Docks and Piers
Clauses Act 1847 may provide for imposing a penalty not
exceeding forty shillings for the breach or non-observance of
any of the byelaws.

(2) No byelaw shall come into operation until it has received
the allowance and confirmation of the Board of Trade and that
allowance and confirmation shall be sufficient for all purposes.

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(3) Sections 84 and 85 of the Harbours Docks and Piers A.D. 1919.
 Clauses Act 1847 shall not apply to any such byelaws. —

(4) Nothing in this section shall be deemed to limit or affect the powers of the Company to enforce any byelaws rules and regulations of the trustees relating to the management use or control of the harbour undertaking in force at the commencement of this Order until the same are altered or repealed or other byelaws rules and regulations made in their stead by the Company.

25. The limits of the harbour as defined on the plan dated the fifth day of October nineteen hundred and eighteen and signed in triplicate by the Right Honourable Hugo Richard Earl of Wemyss and March the chairman of the commissioners to whom the Order was referred by David Murray LL.D. writer Glasgow on behalf of the Company and by Peter Allan Thomson town clerk Ayr on behalf of the town council as relative to this section shall be held as substituted for the plan referred to in section 13 of the Ayr Harbour Amendment Act 1879 and the said section shall be deemed to be altered accordingly to the extent shown on the plan as so substituted one copy whereof is deposited in the office at Ayr of the principal sheriff clerk of the county of Ayr one copy with the Secretary for Scotland and the third copy with the Company at their principal office in Glasgow. Defining limits of harbour.

26.—(1) Subject to the provisions of this Order the Company shall as soon as possible after the termination of the present war put the existing harbour works into proper condition and the Company may from time to time with the consent of the Board of Trade improve alter and extend the harbour undertaking and may in connexion with the same construct erect maintain alter and improve any warehouses offices sheds cranes embankments landing places quays jetties patent slips buoys mooring lights beacons roads sewers drains watercourses tanks mains pipes wires engines weighing machines machinery and other works buildings electric light power or other apparatus or conveniences which may be found necessary or convenient for the accommodation of vessels or traffic and may also from time to time lay down and maintain rails tramways sidings turntables hoists and appliances in connexion therewith on and along the works and lands connected therewith and may take down or Power to improve harbour undertaking.

A.D. 1919. — remove any portions of the existing works of the harbour undertaking Provided that any electric light power or other apparatus constructed erected or maintained by the Company under the provisions of this section shall not be constructed erected maintained or used in such manner as to cause or be likely to cause any interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of such line.

(2) No line of rails constructed under the powers of this Order shall be used for the public conveyance of passengers unless and until the same shall have been inspected and certified by the Board of Trade to be fit for such traffic.

Develop-
ment of har-
bour under-
taking and
expenditure
thereon.

27. The Company shall work and develop the harbour undertaking with proper energy and give all proper facilities and encouragement to the existing and future traffic at the harbour and they shall after the date of vesting and not later than the expiry of 10 years from the termination of the present war expend upon the improvement and equipment of the harbour undertaking a sum of not less than 50,000*l*.

Running
powers and
facilities of
Caledonian
Railway
Company
extended to
harbour.

28. The facilities running powers and privileges which were granted to and conferred upon the Caledonian Railway Company in respect to Caledonian Railway traffic therein defined by (1) sections 25 to 36 inclusive of the Glasgow and South Western Railway (Ayrshire Lines) Act 1865 as extended by sections 14 and 15 of the Glasgow and South Western Railway (Ayrshire Lines) Act 1866 section 33 of the Glasgow and South Western Railway Act 1878 section 13 of the Glasgow and South Western Railway Act 1889 section 16 of the Glasgow and South Western Railway Act 1898 and sections 12 and 13 of the Ayr Harbour Order 1901 and by (2) sections 26 and 28 to 35 inclusive and sections 37 and 38 of the Caledonian Railway Act 1896 as also extended by the said section 16 of the Glasgow and South Western Railway Act 1898 sections 12 and 13 of the Ayr Harbour Order 1901 and section 6 of the Glasgow and South Western Railway (Darvel and Lanarkshire Railway Transfer) Order 1904 shall extend and apply to all lines of railway on the harbour and other works and conveniences already formed or which may hereafter be formed at or in connexion with the harbour and to any alterations or extensions thereof.

29. The dues and charges on shipping and upon or with reference to goods and minerals at the harbour as existing or as it may be enlarged altered or extended shall be uniform whether the traffic is carried by the Company or the Caledonian Railway Company or by the railways or routes of the Company or of the Caledonian Railway Company and the Company shall not give or confer any advantage drawback or other privilege to or on the owners of vessels or others trading in shipping resorting to the harbour or to the traders forwarding traffic over the said railways or routes when the traffic is carried by the Company without giving the like advantages drawbacks or other privileges where the traffic is carried by or over the railway or routes of the Caledonian Railway Company.

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Shipping
dues and
charges to
be uniform.

30. For the protection of the provost magistrates and councillors of the royal burgh of Ayr (in this section respectively referred to as the "town council" and "the burgh") the following provisions shall unless otherwise agreed between the Company and the town council apply and have effect (that is to say):—

For protec-
tion of pro-
vost magis-
trates and
councillors of
royal burgh
of Ayr.

- (1) If at any time the town council shall have reason to believe that the Company are placing the harbour at an undue disadvantage as compared with the harbour of Troon by reason of the harbour rates rebates or allowances or facilities the Company charge or allow at the harbour of Troon the town council may make complaint thereof to the Railway and Canal Commission who shall have the like jurisdiction to hear and determine the subject matter of such complaint as they have to hear and determine a complaint of a contravention of section 2 of the Railway and Canal Traffic Act 1854 as amended by subsequent Acts And for the purposes of this section the town council and the burgh shall with respect to any particular merchandise or class of merchandise or the merchandise of any particular trader or traders carried or intended to be carried by the Company to or from Ayr and shipped or discharged or intended to be shipped or discharged at the harbour be deemed to be persons interested in the carriage of such merchandise within the meaning of subsection 3 of section 33 of the Railway and Canal Traffic Act 1888 :

A.D. 1919.

- (2) The Company shall allow the existing public bathing shelter belonging to the burgh situated on the slope at the south pier and which shelter is shown coloured red on the substituted plan referred to in the section of this Order of which the marginal note is "Defining limits of harbour" to remain and shall not object to any reasonable number of additional public bathing shelters being erected by the town council on the said slope between the north end of the battery and the first steps on the said south pier and that between the points "A" and "B" marked on the said substituted plan and coloured blue thereon :
- (3) The Company shall not interfere with the existing privileges for bathing at the said pier and battery and slope referred to in the preceding subsection and at the pier to the north-east of the eastern end of the swing bridge within the limits of the harbour :
- (4) The said south pier shall be kept open by the Company for the use of the public as a promenade except when the Company may require it to be temporarily closed for the purpose of repairs or other harbour purposes :
- (5) The Company shall continue to allow the public to use the drawbridge or swing bridge mentioned in subsection (2) of section 8 of the *Ayr Harbour Amendment Act 1879* :
- (6) The Company shall not interfere with the existing storm water overflows sewers mains and other pipes of the town council laid in or on the bed of the River Ayr within the limits of the harbour all as shown on the said substituted plan and the town council may from time to time but subject always to the written approval of the Company lay additional storm water overflows sewers mains or pipes in or on the bed of the said river within the said limits as may be required for corporation purposes and which additional storm water overflows sewers mains or pipes do not interfere with harbour interests Provided that in the event of the Company being of opinion that any of the said storm water overflows sewers mains

or pipes interfere with the proper use and purposes of the harbour the Company may give notice in writing to the town council to remove or alter the position thereof and the town council shall within six months from the Company giving such notice remove or alter the position thereof accordingly Provided always that if on the receipt of such notice the town council intimate in writing to the Company that they disagree with the Company's opinion the question whether it is necessary in the harbour interests to remove or alter the said works shall be determined by an arbiter to be agreed upon between the Company and the town council or failing agreement to be nominated by the Board of Trade on the application of either party and in the event of such determination being against the town council the said storm water overflows sewers mains and pipes shall be removed or the position thereof altered accordingly within six months from the date of the decision of the arbiter and the Company shall afford the town council all reasonable facilities for laying in some other suitable position any such storm water overflows sewers mains or pipes to be removed or altered as aforesaid The Company shall give all reasonable facilities to the town council to maintain repair renew or reconstruct the said storm water overflows sewers mains or pipes : A.D. 1919.

- (7) In the event of the lifeboat house of the Ayr branch of the Royal National Lifeboat Institution situate within the harbour being hereafter removed by the Company to meet the requirements of the harbour the Company shall provide another suitable site therefor and shall remove the lifeboat house to such site and re-erect it thereon at their own cost:
- (8) The Company shall when called upon by the town council convey their right and interest to the town council in and to the strip of land extending to 1355 square yards or thereby imperial standard measure situated on the south side of River Street Ayr and between the old and new bridges as shown coloured

A.D. 1919.

green on the said substituted plan on the following conditions namely :—

(i) The town council shall at their own cost erect and maintain in all time coming to the satisfaction of the Company's engineer for the time being a retaining sea wall on the south boundary of the said strip of land when the town council takes possession thereof;

(ii) The said strip of land shall be used by the town council for public municipal purposes only;

(iii) In the event of any boats lighters or other small craft or rafts hereafter loading or discharging goods on the said strip of land the owners thereof shall do so only on previously paying to the Company such reasonable harbour dues as the Company may see fit to charge therefor; and

(iv) The said strip of land shall be so conveyed to the town council subject to the conditions and under burden of any feu duty casualty or other payment contained in the title deeds thereof.

For protection of
Ardrossan
Harbour
Company.

31. If at any time the Ardrossan Harbour Company shall have reason to believe that the Company are placing the harbour of Ardrossan at an undue disadvantage as compared with the harbour of Ayr by reason of the harbour rates rebates or allowances or facilities the Company charge or allow at the harbour of Ayr the Ardrossan Harbour Company may make complaint thereof to the Railway and Canal Commission who shall have the like jurisdiction to hear and determine the subject matter of such complaint as they have to hear and determine a complaint of a contravention of section 2 of the Railway and Canal Traffic Act 1854 as amended by subsequent Acts And for the purposes of this section the Ardrossan Harbour Company shall with respect to any particular merchandise or class of merchandise or the merchandise of any particular trader or traders carried or intended to be carried by the Company to or from Ayr and shipped or discharged or intended to be shipped or discharged at the harbour of Ayr be deemed to be persons interested in the carriage of such merchandise within the meaning of subsection 3 of section 33 of the Railway and Canal Traffic Act 1888.

32. If at any time the Irvine Harbour Trustees (hereinafter in this section referred to as "the trustees") shall have reason to believe that the Company are placing the harbour of Irvine at an undue disadvantage as compared with the harbour of Ayr by reason of the harbour rates rebates or allowances or facilities the Company charge or allow at the harbour of Ayr the trustees may make complaint thereof to the Railway and Canal Commission who shall have the like jurisdiction to hear and determine the subject matter of such complaint as they have to hear and determine a complaint of a contravention of section 2 of the Railway and Canal Traffic Act 1854 as amended by subsequent Acts And for the purposes of this section the trustees shall with respect to any particular merchandise or class of merchandise or the merchandise of any particular trader or traders carried or intended to be carried by the Company to or from Ayr and shipped or discharged or intended to be shipped or discharged at the harbour of Ayr be deemed to be persons interested in the carriage of such merchandise within the meaning of subsection 3 of section 33 of the Railway and Canal Traffic Act 1888.

A.D. 1919.
 For protection of Irvine Harbour Trustees.

33. The Company may apply to or towards the purposes of this Order to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts or Orders and which are not required for the purposes to which they are by those Acts or Orders made specially applicable.

Power to Company to apply authorised capital to purposes of Order.

34. Notwithstanding anything contained in this Order the Company shall not under the powers of or for the purposes of this Order raise or borrow any money or exercise the powers conferred by the section of this Order of which the marginal note is "Power to Company to apply authorised capital to purposes of Order" during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Restriction on raising of capital.

35. Subject to the provisions of this Order any of the works authorised by this Order to be constructed on over or under tidal lands below high-water mark of ordinary spring tides shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade.

Works below high-water mark to be subject to approval of Board of Trade.

A.D. 1919. Any alteration or extension of any such work shall be subject to the like approval.

If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Company and the amount of such cost shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Crown
rights.

36. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Provision as
to general
Railway
Acts.

37. Nothing herein contained shall exempt the Company or their railway from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company.

Expenses of
Order.

38. All costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall subject to the terms of the section of this Order the marginal note of which is "Expenses" be paid by the Company.

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
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